

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mimi Western	Team: Squad #12	CCRB Case #: 202401509	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/13/2024 3:12 PM, Wednesday, 02/14/2024 3:51 PM	Location of Incident: Outside of 135 Grove Street	18 Mo. SOL 8/13/2025	Precinct: 83		
Date/Time CV Reported Tue, 02/13/2024 3:36 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/13/2024 3:36 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Luigi Scalici	12555	970844	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Alejandro Pimentel	30078	967258	090 PCT
2. PO Kathy Debesse	23276	971896	090 PCT
3. PO Marco Rivera	15955	966810	090 PCT
4. PO Jonathan Lebowitz	27554	972060	090 PCT
5. PO Andre Dawkins	25373	963002	083 PCT
6. PO Khalil Elmenyawy	19263	962376	083 PCT
7. LT Frank Laquidara	00000	941474	090 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Luigi Scalici	Abuse: On February 13, 2024, at 135 Grove Street in Brooklyn, Police Officer Luigi Scalici stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unable to Determine
B . PO Luigi Scalici	Abuse: On February 13, 2024, at 135 Grove Street in Brooklyn, Police Officer Luigi Scalici frisked § 87(2)(b)	B . Unable to Determine
C . PO Luigi Scalici	Abuse: On February 13, 2024, at 135 Grove Street in Brooklyn, Police Officer Luigi Scalici searched § 87(2)(b)	C . Substantiated
D . PO Luigi Scalici	Abuse: On February 13, 2024, at 135 Grove Street in Brooklyn, Police Officer Luigi Scalici searched the vehicle in which § 87(2)(b) was an occupant.	D . Unable to Determine
E . PO Luigi Scalici	Abuse: On February 13, 2024, at the 90th Precinct stationhouse, Police Officer Luigi Scalici provided a false official statement against § 87(2)(b)	E . Substantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on February 13, 2024.

On February 13, 2024, at approximately 3:12 PM, PO Luigi Scalici, of the 90th Precinct, stopped § 87(2)(b) vehicle outside of 135 Grove Street in Brooklyn (**Allegation A: Abuse of Authority, Unable to Determine**). PO Scalici asked § 87(2)(b) to step out of his vehicle, and then frisked and searched his pants pockets (**Allegations B: Abuse of Authority, Unable to Determine; Allegation C: Abuse of Authority, Substantiated**). PO Scalici then searched § 87(2)(b) vehicle (**Allegation D: Abuse of Authority, Unable to Determine**). On February 14, 2024, PO Scalici endorsed a stop report regarding the incident, wherein he made a false statement against § 87(2)(b) (**Allegation E: Abuse of Authority, Substantiated**). No arrest or summons resulted from this incident.

The investigation obtained body-worn camera (BWC) videos recorded by PO Scalici, PO Alejandro Pimentel, PO Kathy Debesse, PO Marco Rivera, PO Jonathan Lebowitz, PO Andre Dawkins, and PO Khalil Elmeniawy, of the 90th Precinct (Board Review 01 and 02), summarized in IA #73 (Board Review 03).

Findings and Recommendations

Allegation (A) Abuse of Authority: On February 13, 2024, at 135 Grove Street in Brooklyn, Police Officer Luigi Scalici stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) provided a statement on February 21, 2024 (Board Review 04). He stated that after PO Scalici and PO Pimentel turned on their vehicle's lights and pulled him over, he asked them why they had stopped him. They responded that he had failed to signal a turn. § 87(2)(b) did not know which turn the officers were referring to. § 87(2)(b) did not state whether or not he signaled when he pulled out of a parking spot.

PO Scalici provided a statement on April 11, 2024 (Board Review 05). He stated that he observed § 87(2)(b) vehicle exit a parking spot without signaling. PO Scalici did not remember where the car was initially parked, but remembered that it was about one block away from where he pulled § 87(2)(b) over. PO Scalici and PO Pimentel had a brief conversation regarding pulling § 87(2)(b) over when they observed the violation. PO Scalici then conducted a vehicle stop by activating his lights and sirens. PO Scalici did not ultimately issue a summons because § 87(2)(b) appeared to understand why he had been stopped, so PO Scalici used his discretion and extended courtesy to § 87(2)(b).

PO Scalici's BWC video (Board Review 02) begins with PO Scalici driving along Menahan Street. PO Scalici makes a right turn onto Central Avenue and then turns right again onto Grove Street. At 34 seconds, just after completing the right turn onto Grove Street, PO Scalici activates his vehicle's lights. PO Scalici stops outside of 144 Grove Street. At 1 minute 0 seconds, PO Scalici exits his vehicle and approaches the driver's side of § 87(2)(b) vehicle. At 1 minute 33 seconds, PO Scalici says to § 87(2)(b) "Boss man, you're being stopped because when you pulled out of that spot you parked at, you didn't signal." § 87(2)(b) asks, "I didn't signal?" PO Scalici replies, "That's all it is, yeah."

PO Scalici prepared a stop report regarding this incident (Board Review 12). The narrative reads, in part, "At T/P/O officers did observe a white Toyota NY tag #§ 87(2)(b) fail to properly signal."

The investigation did not obtain any surveillance footage capturing § 87(2)(b) alleged traffic violation.

New York State Vehicle and Traffic Law 1163(d) (Board Review 16) requires drivers to use a turn signal to indicate an intention to turn, change lanes, or start from a parked position.

§ 87(2)(g)

it is recommended that Allegation A be closed as **Unable to Determine**.

Allegation (B) Abuse of Authority: On February 13, 2024, at 135 Grove Street in Brooklyn, Police Officer Luigi Scalici frisked § 87(2)(b)

Allegation (C) Abuse of Authority: On February 13, 2024, at 135 Grove Street in Brooklyn, Police Officer Luigi Scalici searched § 87(2)(b)

Allegation (D) Abuse of Authority: On February 13, 2024, at 135 Grove Street in Brooklyn, Police Officer Luigi Scalici searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Scalici frisked and searched § 87(2)(b) and searched § 87(2)(b) vehicle.

§ 87(2)(b) (Board Review 04) stated that he exited his vehicle at PO Scalici's instruction. § 87(2)(b) did not remember what he was wearing on this day, but believed that his pants had two pockets and that his sweatshirt had one pocket. PO Scalici frisked § 87(2)(b) by patting down his legs, waist, and torso. PO Scalici then reached into all three of § 87(2)(b) pockets. PO Scalici removed § 87(2)(b) cash and ID from one of the pockets and then returned these items to the pocket. § 87(2)(b) stood with PO Pimentel at the back of his vehicle, facing away from his vehicle. PO Scalici searched § 87(2)(b) vehicle by opening all four doors and looking inside. § 87(2)(b) believed that PO Scalici looked "everywhere" inside his vehicle, but as he was facing away most of the time, he did not see exactly what PO Scalici did.

In PO Scalici's BWC video (Board Review 02), at 42 seconds, PO Scalici stops the police vehicle. § 87(2)(b) vehicle is not visible due to the low angle of the camera. PO Scalici pulls forward slightly and gestures, possibly to § 87(2)(b). At 1 minute, PO Scalici activates his BWC, exits the police vehicle, and approaches the driver side of § 87(2)(b) vehicle. The video does not show § 87(2)(b) clearly and does not show whether or how § 87(2)(b) moves around inside of his vehicle. Beginning at 6 minutes 20 seconds, PO Scalici opens § 87(2)(b) front driver-side door and says, "Hey, boss, just step out of the car. Let me see your hands," while § 87(2)(b) picks up his phone and his wallet. PO Scalici says, "Put everything down. Put everything down," as § 87(2)(b) exits the vehicle. At 6 minutes 24 seconds, § 87(2)(b) holds his hands up and out, stating that he is only holding his phone and his wallet, and continues to hold his phone and wallet in his hands. PO Scalici asks, "You got anything on you?" and appears to pat § 87(2)(b) down while facing him, though PO Scalici's hands are not visible in frame. At 6 minutes 27 seconds, PO Scalici places his left hand inside § 87(2)(b) right pants pocket. At 6 minutes 39 seconds, PO Scalici walks § 87(2)(b) to the back of his vehicle, where § 87(2)(b) stands with PO Pimentel, facing away from his vehicle. § 87(2)(b) asks for his coat. At 6 minutes 52 seconds, PO Scalici opens the rear passenger-side door and picks up § 87(2)(b) coat, which he squeezes. PO Scalici briefly squeezes a second coat and then appears to reach around in the rear seat of § 87(2)(b) vehicle. At 7 minutes 11 seconds, PO Scalici finds a screwdriver, which he briefly inspects and then places back in the rear footwell. PO Scalici continues squeezing the first

jacket, appears to reach into the pockets, and then hands it to § 87(2)(b). At 7 minutes 35 seconds, PO Scalici leans his head, arms, and torso into the open driver's door. PO Scalici opens the center console compartment between the front seats and removes items from the center console compartment, including headphones, a cigarette lighter, an electronic cigarette, and a cell phone. PO Scalici looks in the space between the driver seat and the center console. He leans down, apparently inspecting the area around the driver seat. At 8 minutes 15 seconds, PO Scalici opens the glovebox and removes items, including a portable charger and what appears to be a jumper cable or clamp, and then returns these items to the glovebox. At 8 minutes 52 seconds, PO Scalici opens the rear passenger-side door and looks in the seatback pocket behind the front passenger seat. PO Scalici then looks through a cardboard box in § 87(2)(b) rear seat and looks through clothing and other belongings on a child's car seat. PO Scalici then walks around to the rear of the vehicle and tells § 87(2)(b) to return to his vehicle.

PO Scalici (Board Review 05) stated that while pulling § 87(2)(b) over, § 87(2)(b) briefly stopped and then continued to roll forward. As § 87(2)(b) rolled forward, PO Scalici saw § 87(2)(b) lean to his right, toward the center console. After PO Scalici exited his police vehicle and began to approach § 87(2)(b) vehicle, PO Scalici saw § 87(2)(b) again lean his torso toward the center console. PO Scalici could not tell whether § 87(2)(b) arms were extended, as he could only see § 87(2)(b) torso. PO Scalici was then standing next to the driver's side door of the police vehicle, about a car's length away from § 87(2)(b) vehicle, when he saw a "silver, lengthy object," which he could not describe any further, near the "middle" of § 87(2)(b) vehicle. PO Scalici could not describe where exactly the silver object was located. PO Scalici believed that this silver object was either a knife or a gun because it was silver. It had a shape that PO Scalici could not describe. When PO Scalici approached § 87(2)(b) front driver-side door, PO Scalici saw some unknown sort of silver tool, which was long and had a black handle, near the rear "middle" of the car, on the floor. PO Scalici still believed that this object might be a knife or a gun because § 87(2)(b) had stopped his car briefly and then rolled forward, and because he leaned toward the middle of the car. There was no other reason why PO Scalici thought this silver tool might be a knife or a gun. PO Scalici did not see whether the object was L-shaped. PO Scalici asked § 87(2)(b) to step out of his vehicle. He then frisked § 87(2)(b) patting down both of his pants pockets. PO Scalici frisked § 87(2)(b) because he saw bulges in his pockets that appeared heavy and rectangular. PO Scalici conducted a frisk of this left pants pocket and felt something hard and rectangular. PO Scalici thought the object was a knife because it felt like the handle of a knife or a collapsible knife. PO Scalici did not feel the blade of a knife while frisking § 87(2)(b) pocket. PO Scalici believed there was a blade attached to this hard rectangular object solely because knives can be collapsible. At this point, PO Scalici believed § 87(2)(b) had a weapon, which he thought could have been a knife, so he reached into § 87(2)(b) left pants pocket to determine whether the object was a weapon. When PO Scalici reached into the left pants pocket, he found a cigarette lighter. PO Scalici also frisked § 87(2)(b) right pants pocket because it appeared heavy and bulky, and he felt a hard object whose shape he could not describe. Upon frisking the right pocket, PO Scalici felt paper money inside the pocket. PO Scalici then reached into the right pants pocket because of this bulge, and because he wanted to assure himself that there was no weapon in the pocket. PO Scalici found nothing but paper bills inside the right pants pocket. PO Scalici reached into § 87(2)(b) right pants pocket, even though his frisk of that pocket did not lead him to believe that there was any weapon in the pocket, because he still had suspicion that § 87(2)(b) may have had a weapon due to his observation of an unknown silver object in § 87(2)(b) vehicle. After frisking and searching § 87(2)(b) PO Scalici believed there might be a weapon in § 87(2)(b) vehicle because of his initial observation of an unknown silver object. PO Scalici then retrieved § 87(2)(b) jacket from the car for § 87(2)(b). While grabbing § 87(2)(b) jacket, PO Scalici found a tool in the rear middle of the vehicle, on the floor. Upon finding the tool, PO Scalici observed that it was

long and silver with a black handle. PO Scalici believed that this silver tool could have been the object he had initially seen inside § 87(2)(b) vehicle. PO Scalici then continued to search § 87(2)(b) vehicle because he wanted to ensure there was no weapon in the vehicle. PO Scalici searched both the front and rear inside of § 87(2)(b) vehicle. PO Scalici did not find any weapon inside § 87(2)(b) vehicle.

As noted, PO Scalici prepared a stop report regarding this incident (Board Review 12). The narrative reads in full, “At T/P/O officers did observe a white Toyota NY tag #§ 87(2)(b) fail to properly signal. Officers conducted a lawful car stop when safe to do so. When conducting car stop subject did place vehicle in park and after a brief moment did place the vehicle back in drive and began to move forward. As vehicle failed to stop officers did observe subject lean and bend over moving towards the middle of the vehicle. Officers observed individual reaching for a silver object indicative of the blade of a knife. Upon approach of vehicle officers were unable to see the individual’s hands and did recognize individual to be known to carry weapons from prior encounters. When safe to do so officers did conduct a car stop from outside of the vehicle, when individual stepped out of the vehicle, officers did frisk individual because he is known to carry weapons and felt a hard object indicative to the feel of the handle of a knife leading to a search. Observe an object indicative of the handle of a knife in individual’s pocket. Officers did frisk outer layer of subject pocket and felt a hard object indicative of the handle of a knife. Subsequent search of individual, negative result for knife. Officers did search the vehicle for a silver object indicative of the blade of a knife. Subsequent search did result negative for weapons, silver pry bar was found in vehicle. Business card offered and provided to individual.”

Per *People v. Williams* 160 A.D.2d 397 (1990) (Board Review 07), the mere observation of an undefinable bulge in a person’s pocket is an insufficient basis for a frisk.

Per *People v. Carvey*, 89 N.Y.2d 707 (1997) (Board Review 17), where officers lawfully stop a vehicle, observe an occupant engage in furtive movements such as bending down to place something beneath a seat, and then observe some other suspicious factor – in that case, the defendant wearing a bulletproof vest under his sweatshirt – officers may frisk that occupant for weapons.

Per *People v. Bracy*, 937 N.Y.S.2d 501 (2012) (Board Review 08), following a legal frisk, officers may conduct a more intrusive inquiry, such as searching a pocket or waistband if the frisk reasonably indicates the presence of a weapon. Per *People v. Williams*, 629 N.Y.S.2d 607 (1995) (Board Review 09), an officer is not justified in searching a pocket that they have frisked and felt an object which they do not believe to be a weapon, as the object cannot reasonably be considered to pose any danger to officer safety.

In *People v. Scott*, 216 A.D.3d 552 (2023) (Board Review 18), citing *People v. Newman*, 96 A.D.3d 34 (2012) (Board Review 19), the court ruled that an officer may be justified in searching a vehicle when they observe furtive movements suggesting an individual may be reaching for weapon, combined with some other suggestive factor, such as, in that case, the deceptive conduct of pretending to be asleep, opening and immediately closing the glove compartment, and then reaching underneath a seat. Per *Scott*, the *Newman* ruling emphasized that the reaching movements observed by the officers when approaching the vehicle would alone not justify the intrusion into the vehicle, but that the presence of additional factors justified the officers’ reasonable suspicion that there could be a weapon in the vehicle that posed an actual and specific danger.

PO Scalici stated that he observed § 87(2)(b) lean toward the middle of the vehicle while pulling over, and again as PO Scalici approached the vehicle. Further, PO Scalici stated that upon

approach, he observed in the vehicle a long silver object, which he believed could have been a knife or a gun. He also stated that when § 87(2)(b) exited, he observed bulges in § 87(2)(b) pants pockets, which he could only describe as “heavy” and “rectangular.” § 87(2)(g)

§ 87(2)(b) BWC video shows that PO Scalici found a screwdriver in the vehicle. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation B** be closed as **Unable to Determine**.

PO Scalici stated that he searched § 87(2)(b) left pants pocket because, upon frisking the pocket, he felt a hard, rectangular object, which he believed to be a knife because knives may have collapsible handles. § 87(2)(g)

§ 87(2)(b) Therefore, it is recommended that **Allegation C** be closed as **Substantiated**.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation D** be closed as **Unable to Determine**.

Allegation (E) Abuse of Authority: On February 13, 2024, at the 90th Precinct stationhouse, Police Officer Luigi Scalici provided a false official statement against § 87(2)(b)

It is undisputed that PO Scalici frisked § 87(2)(b) and prepared a stop report detailing the basis for the frisk.

As noted above, in a Stop Report that PO Scalici prepared regarding this incident (Board Review 12), PO Scalici wrote, “Upon approach of vehicle officers were unable to see the individual’s hands and did recognize individual to be known to carry weapons from prior encounters. When safe to do so officers did conduct a car stop from outside of the vehicle, when individual stepped out of the vehicle, officers did frisk individual because he is known to carry weapons.” PO Scalici filled the field, “If Yes, Indicate Basis for Frisk,” with the answer, “Suspect known to carry weapons.” PO Scalici endorsed this report on February 14, 2024 – the day following the incident.

PO Scalici (Board Review 05) stated that he had never interacted with § 87(2)(b) prior to this incident and did not recognize § 87(2)(b) at all. After § 87(2)(b) departed in his vehicle, and after the conclusion of the vehicle stop, PO Scalici learned that § 87(2)(b) was known to the Department. During his CCRB interview, PO Scalici was presented with a copy of the stop report he prepared regarding the incident. When asked why he wrote on the report, “Officers did

frisk individual because he is known to carry weapons,” when he did not know this information before he frisked § 87(2)(b). PO Scalici stated that this may have been an error on the report. PO Scalici confirmed that when he frisked § 87(2)(b) he did not know whether § 87(2)(b) was known to carry weapons.

NYPD Administrative Guide Procedure 304-10 (Board Review 13) defines a false statement as an intentional written or verbal statement that an officer knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made. Officers are prohibited from intentionally making a false official statement. This procedure defines a “material fact” as a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. It is a fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. A material fact may be distinguished from an insignificant, trivial, or unimportant detail. Additionally, under “Additional Data,” this procedure notes that circumstances in which false or misleading officials statements are made include, but are not limited to, verbal statements made pursuant to a statutory or procedural requirement, or under oath during a civil, administrative, or criminal proceeding, in addition to written statements made in a sworn document, including affirmations made in Department and non-Department forms.

PO Scalici wrote in the Stop Report three separate times that he frisked § 87(2)(b) because § 87(2)(b) was known to carry weapons. However, he also stated that he had no prior knowledge of § 87(2)(b) and specifically confirmed that he did not know of § 87(2)(b) history at the time of the frisk. The purpose of a stop report is to accurately record officers’ investigative actions and the basis for those actions. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 14).
- PO Scalici has been a member of service for three years and has been a subject in one other CCRB complaints and four other allegations, for which the investigation is still ongoing. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
 - As of May 29, 2024, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regard to this incident (Board Review 15).
 - [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12 _____

Investigator:	<u>Mimi Western</u>	<u>Inv. Mimi Western</u>	<u>July 25, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Samuel Ross</u>	<u>IM Samuel Ross</u>	<u>April 4, 2025</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date